

SEPARATE OPINION BY M. SÉFÉRIADÈS.

[Translation.]

Being deeply sensible of my duties as an international judge, I find myself obliged to disagree with the Court's judgment and, availing myself of the right conferred on me by Article 57 of the Statute, I deliver my separate opinion in the following terms.

I.

The question which the Court was called upon to decide was very clearly formulated in the Special Agreement signed between France and Greece on August 28th, 1936, and in particular in the part of the Special Agreement which is printed between quotation marks; there it is definitely stated that the Court is requested to answer the following question:

"Whether the contract concluded on April 1st/14th, 1913, between the French firm Collas & Michel, known as the '*Administration générale des Phares de l'Empire ottoman*', and the Ottoman Government, extending from September 4th, 1924, to September 4th, 1949, concession contracts granted to the said firm, *was duly entered into and is accordingly operative* as regards the Greek Government in so far as concerns lighthouses situated in the territories of Crete, including the adjacent islets, and of Samos, which were assigned to that Government after the Balkan wars."

The origin of this dispute is simply the Court's Judgment of March 17th, 1934.

By the terms of that judgment the Court, while finding that the above-mentioned contract of 1913 between the Ottoman Government and the firm of Collas & Michel had been duly entered into, nevertheless made a reservation; for it informed France and Greece that, as the Special Agreement "*only requires it to decide on a question of principle*",.... "*it is not called upon to specify which are the territories detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 is operative are situated*"; and it was particularly necessary to make this *reservation* because—still according to the words of the judgment—in 1934 "*the Parties have not argued before the Court the questions of fact and of law which might be raised in that connection and which the Court has not been asked to decide*".

Thus the Court, in its judgment of 1934, by definitely reserving the question "*which are the territories, detached from Turkey and assigned to Greece after the Balkan wars or subse-*

quently, where the lighthouses in regard to which the contract of 1913 *is operative* are situated", gave rise to the Special Agreement of 1936, which merely asked it to decide the question which it had itself reserved in 1934.

These are the causal facts as a consequence of which the Court is now called on to decide whether, in regard to the islands of Crete and of Samos, the contract of 1913 "*was duly entered into and is accordingly operative*".

It is simply, as is stated in the Special Agreement of 1936, a question of "the applicability in a particular case of the judgment already rendered", a case having its basis in the reservations made by the Court.

And the question stated above, between quotation marks and in very clear language, by the Special Agreement is the only question that we are called on to decide, and *we have to decide it in all its aspects*.

It were vain to suggest that, as the reservation made by the Court in 1934 was not inserted in the operative clause of the judgment, but in the recitals which precede it, this reservation does not exist; that the Court must be deemed to have decided the question in its entirety in 1934, in regard also to the territories of Crete and Samos, and that there is *res judicata* in respect of those islands just as much as of the other territories assigned to Greece after the Balkan wars.

Such reasoning would not only amount to regarding the recitals of a judgment as being entirely devoid of purpose, but, in the present case, would gravely detract both from the legal and moral value of the judgment of 1934, for one would thus be led to conclude that the different parts of that judgment were in conflict with one another and that it was therefore an inconsistent judgment.

For the rest, this line of argument was ruled out by the Special Agreement of 1936, from the very outset.

For in that Special Agreement it is definitely admitted that the Permanent Court of International Justice, in its Judgment of March 17th, 1934, made "the reservation that the Special Agreement only requires it to decide on a question of principle and that it is not called upon to specify which are the territories, detached from Turkey and assigned to Greece after the Balkan wars or subsequently, where the lighthouses in regard to which the contract of 1913 *is operative* are situated".

That is the actual text of the reservation which was formulated by the Court in 1934 as a result of our deliberations.

To misapprehend the Special Agreement, in the first place, would be to misapprehend the instrument which governs and defines our jurisdiction at this time. To restrict its scope would simply be a denial of justice of a special kind.

Again, to misapprehend the reservations made by the Court in the judgment which it delivered in 1934 would be to misapprehend the *res judicata*, so far as concerns the reservations.

It is necessary therefore, in my opinion, to respect both the Court's judgment of 1934 and the Special Agreement of 1936, which submits to the Court "a particular case of the judgment already rendered by the Court" in order to decide upon the question whether the contract entered into on April 1st/14th, 1913, between "Collas & Michel" and the Ottoman Government was duly entered into and is accordingly operative in so far as concerns lighthouses situated in the territories of Crete and Samos.

In short, the intention of the signatories of the Special Agreement of 1936 is to submit to the Court a particular case, which was not submitted to it in 1934 and upon which, according to its judgment of that date, it had not adjudicated, but in regard to which it had reserved its right to adjudicate in the event of "questions of fact and of law which might be raised in that connection" being submitted to it.

II.

Although the Special Agreement of 1936, on the basis of which the Court is called upon to give judgment, only asks it to say: "whether the contract of April 1st/14th, 1913, was duly entered into and is accordingly operative in so far as concerns lighthouses situated in the territories of Crete and of Samos....", it appears nevertheless, in its preamble, to give the Court certain guidance for the course which it should follow in arriving at its judgment.

For in this preamble (para. 5) we read that the Court is requested to decide upon the question submitted to it in regard to the islands of Crete and Samos, taking into account the period at which these territories "*were detached from the Ottoman Empire*".

Now what is the meaning of this preamble?

According to the view expressed in the Court's judgment, all that the Parties intended by those words was to restrict the powers of the Court so that it need concern itself with no question of fact or of law apart from detachment. Thus, according to this line of reasoning, one would have to conclude that, even if it were stipulated *expressis verbis* in letters exchanged between the Parties to the contract of April 14th, 1913—Turkey and Collas & Michel—that the agreement which they had just concluded should not be deemed operative in regard to the islands with which we are concerned,

the Court should not take that fact into consideration, for it would be bound to decide solely upon the date of detachment and upon nothing else.

I find it absolutely impossible to accept reasoning of that kind.

For, indeed, its effect would be nothing less than the complete and entire suppression of the words of the Special Agreement which the Parties were careful to insert between quotation marks in that text.

It is obvious that paragraph 5 of the preamble of the Special Agreement must have some meaning; nay more, we consider this preamble to be absolutely necessary, provided always that it is understood in its only acceptable sense, which is the following: it simply means that the Court should not concern itself, in the present suit, with the date at which the territories of Crete and Samos were assigned to Greece, but with the detachment of those territories from Turkey, independently of their union with Greece.

And this guidance was absolutely necessary in the present suit; for it was necessary to avoid identifying or confusing in any way the date of the detachment from Turkey of the territories in question and the date of their annexation by Greece—an identification which occurs both in the Special Agreement and in the judgment of 1934.

This meaning of paragraph 5 of the preamble of the Special Agreement of 1936 results quite unmistakably from the whole circumstances of the suit, from the Protocol of Lausanne, from the Special Agreement of 1931, from the written and oral discussions which preceded the judgment of 1934, and from that judgment itself.

III.

In view of the foregoing considerations, and summing up what I have said, I am therefore of opinion that the only question on which the Court should give a decision is whether the concessionary contract signed by Turkey in 1913, which was to become operative in 1924 and terminate in 1949, "was duly entered into and is accordingly operative" in regard to the Greek Government, in so far as concerns the islands of Crete and Samos.

* * *

In order to reach a decision on this question, *which is the only question asked by the Special Agreement*, the Court should, in my opinion, consider:

1. Whether, on April 14th, 1913, the territories of Crete and Samos were detached from the Ottoman Empire, irrespective of the question whether, at that date, they already formed part of the territories of Greece.

2. Whether, for other reasons, attributable for instance to the expressed or tacit intention of the contracting Parties of the concession of 1913—or even of the party granting the concession alone—the concession of 1913 should be considered as inoperative in regard to the islands with which we are concerned.

It is on the reply to be given to those two questions that the issue of the present suit should, in my opinion, depend.

IV.

*At what period were the territories
of Crete and Samos detached from the Ottoman Empire?*

(a) In order to decide on that point, it is necessary that we should consider what is the ordinary meaning of the word “detached”;

(b) what is the legal meaning of that term, from the standpoint of international law, especially in connection with Eastern affairs and with the dismemberment of Turkey;

(c) what is the meaning which the Parties to the dispute desired to attribute to the term;

(d) lastly, what is the juridical construction which the Court should place upon the term, in case of doubt.

To begin with and from a general point of view, if one turns to the dictionary of the Académie française or to Littré's dictionary, it is clearly seen that the words “*détacher*” and “*détachement*” possess more than one meaning. They mean *dégager*, *écarter* (*détacher les bras*), *rendre distinct*, *éloigner* (see also the newspaper *Le Journal* of September 27th, 1937, in an article by M. Guy Mazeline: “.... *on sent la population sinon lointaine, du moins détachée....*”), and finally *délivrer*; and in this enumeration of its different meanings, we find that it is only in the fourteenth place that the sense of “*rompre*” is assigned to the word by Littré.

In legal terminology, we only find the word “*détacher*” used in a single case—at any rate so far as I am aware, namely in the expression “*bail à premier détachement*”, or “*bail à conve-
nant*”, signifying lands which are not let on perpetual lease, by which every link with the owner would be severed, but which are, on the contrary, leased for an agreed period

at the end of which the landlord can terminate the tenant's occupancy.

The same applies in regard to the territories which have been detached from Turkey, whether by consent or by force, in different ways, in the course of Eastern affairs.

The territories thus detached from her included, especially, Serbia and the Roumanian provinces in 1856, Bulgaria in 1878, Cyprus, Bosnia and Herzegovina at the same period, Egypt since 1867 and Tunis since 1881. All these countries had, from the above-mentioned dates—and in some respects from even earlier dates—ceased to be under the servitude of concessions which the Turkish Government was wont to impose on the territory over which it still retained all the attributes of sovereignty, *in their entirety*.

What then is the meaning which should be assigned, in international law, to the words "territories detached"?

It is perfectly evident, in our view, that "from the point of view of international law a territory must be regarded as detached from a State when it is *internationally recognized* that the essential attributes of the sovereignty appertaining to that State have ceased to exist, having henceforth become vested either in the said territory or in another State. And these attributes of sovereignty, without which no sovereignty can be described as such are: the right of free political organization, the right of autonomy in the conduct of social affairs, prisons, public worship, public education, administrative machinery, systems of taxation, communications, organization of the police, the right of civil and criminal legislation, the right of jurisdiction, the obligation of military service, freedom of trade, the right of the flag, the right to conclude treaties and the right of representation."

That is, in our opinion, the only scientific definition which, if we wish to avoid factitious and arbitrary constructions, international law justifies us in assigning to the expression "territories detached". Moreover, that definition coincides perfectly with the excellent definition given by M. Huber in his arbitral award of April 4th, 1928, to the effect that sovereignty presupposes not an abstract right, devoid of any concrete manifestation, but on the contrary the continuous and pacific exercise of the governmental functions and activities which *are its constituent and essential element*.

International situations have to be determined juridically *non ex nomine sed ex re*. I am, therefore, unable to accept, in regard to the special point that we are considering, the "diplomatists' formula" labelled "the integrity of the Ottoman Empire", a formula which has become merely *a subject for jesting*, as an eminent French publicist could not refrain from pointing out.

Moreover, it has always been in this sense that both the doctrine and jurisprudence of international arbitration have interpreted analogous international situations, even where the hypotheses have been far less beyond cavil than the one we are considering. This was so, for instance, in regard to territories ceded on lease by one State to another for periods of great length, such cases being considered—irrespective of the term used to describe them—as instances of genuine detachment, in spite of the disguised form of acquisition. Thus the arbitral award of August 28th, 1902, delivered by G. Gram and Louis Renault, in the suit between Germany, France and Great Britain, of the one part, and Japan of the other part, rightly held, in its statement of reasons, that the claims which Japan put forward, relying on her sovereignty, were inconsistent with the facts and with practice.

And since the expression "territories detached from the Ottoman Empire" can bear no other meaning, whether in grammar or in law, than that which we have just explained, we also consider it beyond question that this was precisely the sense in which it was employed by Greece when she signed Protocol XII of Lausanne and the Special Agreement of 1936.

Indeed, I find it impossible to believe that, in signing the Treaty of Lausanne, the other signatory Powers can have held any different conception on this point.

For, were it otherwise, we should have to suppose that these Powers were also prepared to admit that, even at that date, certain territories which were already independent or under their administration or protection, such as Cyprus, Egypt, Libya and even Tunis, continued to be territories not detached from Turkey, so that the latter Power would still be entitled to conclude concessionary contracts in respect of them within the meaning of Protocol XII.

But, supposing that there were some doubt as to the meaning of the word "detached", who is it that should benefit by that doubt? Should the benefit be allowed to MM. Collas & Michel, in whose favour this species of international servitude for the lighthouses had been conceded by Turkey, or should it be allowed in favour of these territories, and consequently of Greece?

The question needs only to be asked in order to be answered.

For, in accordance with a general principle which is unanimously accepted by the doctrine of international law, all treaties "stipulating servitudes should be interpreted restrictively, so that the servitude, which is an exceptional right attaching to the territory of a foreign State, may limit the sovereignty of the said State as little as possible".

That is, indeed, a general principle of law recognized by all civilized nations, and it is one of the general principles which the Court is obliged to apply in virtue of Article 38 of its Statute.

That general principle is also set forth in Article 1162 of the French Civil Code in the following terms: "In case of doubt the agreement is interpreted against the party which stipulated the obligation, and in favour of the party which undertook the obligation." And that is quite natural; for indeed "any obligation, or aggravation of an obligation, implies a restriction of the natural liberty of the debtor. The existence of a contractual obligation cannot therefore be presumed any more than that of a servitude." (Baudry—Lacantinerie, *Traité de Droit civil*, XII, No. 569.)

* * *

Independently of the solution at which we should arrive on the basis of the date of detachment of the islands of Crete and Samos from Turkey, the Court can certainly not, in our opinion, refrain from discussing the question whether, for reasons of another kind, this contract should be considered as having *not been duly entered into, and consequently as not being operative* in regard to the Greek Government.

For on this point the Special Agreement is clear and definite. Moreover, not only is this the issue on which the Parties are divided, but an examination of this question would, we believe, result in showing the true significance of the word "detachment" in the sense in which it was understood and employed by the authors of the Special Agreement, the instrument which binds the Court—for the latter's jurisdiction cannot extend beyond this expression of the common will of the Parties.

And the common will of the Parties on this point is clearly formulated in the very first words of the French Memorial, where that document seeks, in a truly legal spirit, to "*define the issue that is to be debated and the point upon which the Court is asked to give judgment*".

And in order to define this issue, the French Memorial says explicitly: "THE EXACT QUESTION AT ISSUE IS THIS: *Could these territories, at a certain period when they were not yet Greek, be regarded as no longer Ottoman to the extent that the Imperial Ottoman Government had no longer the right to conclude certain contracts therein?*"

And it was, indeed, to the discussion of that issue that those who pleaded before the Court in the case before us devoted all their efforts.

V.

Nevertheless, even supposing that the word "detachment" should be read as bearing the meaning attributed to it by the Court, which thus rejects the Greek Government's contention, it would still be necessary to examine even more closely the principal question put by the Special Agreement of 1936, that is to say the question *whether for any legal reason, drawn more particularly from Ottoman law and corroborated by international law itself in regard to this point, Turkey had not ceased both in fact and in law to be able in April 1913 to grant concessions in respect of lighthouses in the islands of Crete and Samos.*

In other words—to use the actual terms of the Special Agreement—whether the contract of April 1913 between the firm of Collas & Michel and the Ottoman Empire "*was duly entered into and is accordingly operative as regards the Greek Government*". That is really the whole question which the Court asked itself in 1934, on pages 7 and 8 of its judgment, and which in principle it decided in favour of the French Government's contention, *refraining however from passing upon the question whether there were territories in respect of which that concession was to be regarded as inoperative as regards Greece.*

Accordingly, in the case before us we must also consider what is the meaning of the expression "duly entered into and accordingly operative as regards the Greek Government", which occurs in the Special Agreement of August 28th, 1936, on the basis of which the Court is to render judgment.

The question of the meaning of this expression has already been raised and decided in our Judgment of March 17th, 1934; thus the Court has already decided, on pages 16 and 17 of that judgment, that the Parties themselves were in agreement that the words "duly entered into" were taken from Article 1 of Protocol XII and that they have *the same sense* in the Special Agreement as in the Protocol.

In any case, in regard to this same point, the Court definitely agreed (pp. 20 and 26 of its judgment) that Ottoman law must be examined for the purpose of the decision as to the validity or otherwise of the 1913 concession contract.

As the question is no different now, the undersigned is of opinion that the Court should not have refused to consider the question whether the 1913 contract, as regards the islands of Crete and Samos, *was concluded in accordance with the prescriptions of Ottoman law.*

For there can be no doubt that Ottoman law was entirely and absolutely violated in the two special cases which we are considering.

What is the Ottoman law which we must consider ?

In some countries, all the laws of the country are not identical for all territories belonging to it. In France (Alsace, Lorraine and the colonies), in Greece, in England and particularly in Turkey—since it is Turkey with which we are concerned—some territories were or are governed by different laws. This was in particular the case as regards the territories of Crete and Samos.

Accordingly, in answering the question whether the 1913 contract was *duly* entered into, i.e., in accordance with Turkish law, regard must be had not to the Turkish laws applying in Constantinople, in the Lebanon or in Thrace, but solely to the Turkish laws applicable in the islands of Crete and Samos. It is clear that a decision that these islands were not yet detached from Turkey in April 1913 involves the corollary that all their laws must be regarded as forming part of the Ottoman legal system.

It is however clear that under this special régime of Ottoman public laws, a régime which became at the same time an international régime—for it only came into existence as a result of foreign intervention and international conventions agreed to by Turkey, conventions which did not even allow Turkey to modify the régime without the express or tacit approval of the other contracting States—Turkey no longer had power, in April 1913, to sign concessions in respect of the islands of Crete and Samos, *either in favour of her own nationals or, a fortiori, in favour of persons of foreign nationality—German, French, Italian or Russian.*

Since such concession contracts must be regarded as irregularly signed, they will be inoperative as regards the islands with which we are concerned; and they cannot be in any way binding on the States to which these islands were assigned. An examination of the international legal situation of these territories definitely confirms this view.

VI.

The Island of Crete.

First of all, let us see at what period we may say—or even are bound to recognize—that the island of Crete was detached from Turkey.

In our view, Crete was in fact detached from Turkey—I use the word “detached” in its usual sense—when, in 1897, the Ottoman troops were compelled to leave Cretan territory never to return.

This detachment also acquired full legal effect when the Constitution voted by the Cretan Parliament on April 29th, 1899, was confirmed by the Powers at Rome in 1901.

After that time, the Sultan ceased to intervene in the affairs of Crete. After 1906 this detachment became a veritable axiom of the Eastern question; at that date the Great Powers sent to the King of Greece their famous note to the effect that "giving practical recognition to the interest which H.M. the King of Greece must *always* take in the prosperity of Crete, they have agreed to propose to H.M. that henceforth *whenever* the post of High Commissioner of Crete shall fall vacant, His Majesty shall nominate a candidate and officially inform them of his choice".

Finally, the island of Crete, which had been a semi-sovereign State from 1897 to 1912, became a Greek province in the latter year, when (a) on March 2nd, 1912, a decree of the Cretan Assembly "abolished the institution of a separate government in Crete as distinct from the Government of the rest of the Kingdom of Greece" and more especially when (b), on October 1st of the same year, the Greek Government announced to the Cretan Government that "Greece agrees that *henceforward there shall be a common Parliament* for the Free Kingdom and the island of Crete".

Following these events and more particularly after the favourable conclusion of the Balkan war, on February 16th, 1913, the Turkish flag of zinc, the last vestige of Turkish suzerainty, which was flown on an islet adjacent to Crete (Suda) was struck and replaced by the Greek flag.

Such shortly is the correct and indisputable history of the detachment of Crete from Turkey.

But in that case, it will be objected, if Crete was already detached from Turkey in 1897 and, as from February 1913, finally became part of the territory of the free and independent State of Greece, why was it thought necessary in the various treaties which followed these wars, and in particular the Treaty of London of May 30th, 1913, and that of Athens of November 14th of the same year, to affirm the renunciation by the Sultan of his rights in respect of the island of Crete? For if that island was already Greek on April 1st, 1913, or even if the Sultan at that date no longer possessed any rights whatever over Crete, the clauses in the above-mentioned treaties concerning Crete would be quite superfluous.

The answer to this argument is not difficult. It is the answer given in 1814—at the Congress of Vienna—by Talleyrand to Humboldt when the latter refused to accept, as being

unnecessary and obvious, a certain declaration proposed by the former: "If that goes without saying, it will go still better if we say it."

This is precisely what Greece wanted as regards Crete: to reaffirm an existing situation. She simply considered that a thing which went without saying would go still better if it was said.

Moreover, a similar course has been adopted more than once in international practice. I will content myself with citing Articles 118 and 120 of the Treaty of Sèvres of *August 10th, 1920*.

According to the former of these Articles, Turkey recognized the French protectorate in Morocco and accepted all the consequences thereof and we find the same wording in Article 120 as regards Turkey's recognition of the French protectorate over Tunis. In reality, however, the recognition in this way in 1920 of a state of affairs which, in the case of Tunis, had existed since 1881, and in the case of Morocco, since 1912, was entirely superfluous; and I venture to think that it would not occur to anyone to infer from the Treaty of Sèvres of 1920—assuming that that Treaty had been ratified—that it should be held that the old bonds uniting Turkey to Tunis and Morocco were only to be regarded as severed as from that date.

* * *

Although the foregoing arguments appear to us to lead inevitably to the conclusion that the island of Crete was detached from Turkey before April 1st/14th, 1913, the date of the concessionary contract between that Power and the firm of Collas & Michel, a circumstance which is to be regarded as rendering this contract inoperative as regards Crete and consequently also as regards Greece which succeeded to the former's rights and obligations, I must also examine the question whether that contract should not also be considered as inoperative as regards that island for reasons of another kind.

* * *

As has already been observed, on April 29th, 1899, Crete received a special Constitution approved by the Great Powers. This Constitution, which was framed and adopted by a Cretan General Assembly, was communicated to France, Great Britain, Italy and Russia before it became definitive either *from the standpoint of Turkey* or from that of international law. These Powers caused the Constitution to be examined by their representatives in Rome, constituted as a conference presided over

by the Italian Minister for Foreign Affairs. They demanded certain amendments which were agreed to by the Cretan Assembly. The Constitution thus became absolutely definitive (see English Blue Book, 1901, No. 31 and No. 74).

The legal validity of this Cretan Constitution was never disputed by *Turkey*, at all events as regards its main features; Greece for her part had no competence to dispute it.

Moreover, since France, through her representatives, had agreed to its terms at Rome, there can be no doubt that this Constitution is an international instrument accepted by the Parties to the case, an instrument which the Court should apply in accordance with Article 38 of its Statute.

Above all, however, it is to be observed that, so far as concerns those who, notwithstanding the existence of this Constitution, hold that the island of Crete continued to form part of the Ottoman Empire, this constitutional law should certainly be regarded as a *Turkish law*, though only applicable to the island of Crete.

Now what do we find in this Constitution? In the first place, immediately after Article 1, which declares that the island of Crete enjoys complete autonomy, Article 2 formally lays down that "*no servitude can be established in that territory*".

More particularly, however, with regard to contracts, treaties or conventions affecting the island of Crete, what power was it which alone was legally competent to sign such instruments?

We find a clear and definite answer to this question in Article 30 of the above-mentioned Constitution, whether it be regarded as an international treaty or as a Turkish law imposed upon Turkey by international pressure and consequently not susceptible of modification by the will of that country alone.

According to this Article, "The Prince represents the State [i.e. Crete], *concludes conventions for which he demands the vote of the Chamber, coins money and confers decorations.*" It cannot be denied that this provision is as clear as possible. Under this provision the Prince was the only authority in Crete entitled to conclude conventions. Moreover, this provision is also corroborated by other articles of the constitutional law in question.

I will merely quote Article 18, under which the only monopolies which may exist in Crete are such as are established by a law to raise public revenues or in the interest of public security, and Article 61 according to which, without a law voted by the Chamber and sanctioned by the Prince, no tax may be imposed or levied, no loan or convention burdening the finances of the State may be concluded and no pension or

gratuity, to be a charge on the exchequer, may be granted.

To my mind, it clearly appears from the foregoing that, under the statute of Crete, the Turkish authorities in Constantinople no longer had any right to enter into conventions in respect of the territory of that island. Moreover, after that date, all conventions affecting Crete concluded with foreign companies or firms were drawn up and signed by the Cretan authorities, without any interference or even protest on the part of the Turkish Government in Constantinople.

International practice therefore entirely conformed to the constitutional provision above mentioned, which met with international acceptance, even if it were regarded only as a Turkish law.

The Greek Memorial quotes a number of examples of these concessions : telephone concessions, salt monopoly concessions, etc.

I therefore think it superfluous to repeat them, and I will simply refer to page 16 of the Greek Memorial.

On the other hand, though the contrary would appear to have been maintained by Collas & Michel, *no concession in regard to the island of Crete has been granted by the Sultan since 1899.*

That being so, under what principle or what provision can Collas & Michel claim that the Turkish authorities alone had the right duly to grant them a concession in respect of the lighthouses in Crete? Why and in virtue of what privilege—which would constitute a *privilegium odiosum*—should they alone of all companies and firms in the world, be entitled to obtain from the central authorities in Constantinople a grant of rights in respect of the island of Crete?

In my view, this claim is quite incomprehensible. I have studied the memorials of the French Government and heard the oral arguments expounded before us ; the latter simply amount to a development of the claim that the Sultan, on April 14th, 1913, was still suzerain of Crete.

Reference has been made to the general rights of suzerainty as though those rights were the same in every case, and as though, if it were a case of actual sovereignty, all territories under that sovereignty were subject to the same laws. But it is undeniable that this is by no means the case : “To say that a State is semi-sovereign does not suffice to define the status of that State in relation to its suzerain. In fact, there are as many varieties of sovereignty as there are semi-sovereign States. The powers of the suzerain depend ultimately on the instrument creating the semi-sovereignty....”

In the present case, it is obviously to the 1899 Constitution—whether it was the Constitution of an autonomous State or a Constitution grafted on to the general organic régime of the Turkish Empire—that we must refer in order to ascertain, first, what were the powers of the central Government of Turkey, and, secondly, what were the powers of the Cretan authorities—who were under the suzerainty of the Porte—that had to be respected by the signatories of the concession contract of 1913.

That was a condition which was absolutely necessary, according to the Court's judgment of 1934 itself, in order to make it possible for the 1913 concession to be regarded as duly entered into by Turkey and accordingly operative as against Greece, in so far as concerns Crete.

Moreover, Collas & Michel were perfectly aware which laws—Turkish or otherwise—had to be observed in Crete in order to endow the concession which they desired with any degree of legality. They knew quite well that certain territories under Turkish suzerainty or even sovereignty were governed by special laws which alone were applicable in this connection—laws which Turkey herself had accepted willingly or unwillingly and which governed the provinces placed under her suzerainty.

I could cite more than one example with special reference to the lighthouse question now before us.

The first contract concerning lighthouses was concluded in 1860—four years after the Treaty of Paris of March 30th, 1856. Under Article 22 of this Treaty, the Principalities of Wallachia and Moldavia (Roumania of the present day) were placed under Ottoman suzerainty. Nevertheless, the contract of 1860 awarding the lighthouse concession to Collas & Michel did not extend to the Roumanian ports of the Black Sea.

Indeed, according to Annex A to this contract, none of the lighthouses were situated in Roumanian territory; this simply means that, notwithstanding the Porte's suzerainty over Roumania at this date, that suzerainty did not comprise a right on the part of the Constantinople Government to confer concessions, and in particular lighthouse concessions, in respect of Roumanian territory, and this was because, in consequence of Roumanian semi-sovereignty as established by Article 22 of the Treaty of 1856, the local laws—whether Turkish or otherwise—did not authorize the Constantinople authorities to sign such concessions. The same held good in the case of Cyprus.

Furthermore, all foreign companies holding concessions in the island of Crete granted by the Sultan before 1897, were obliged to recognize that, subsequent to the Cretan Constitution of 1899, their concessions could no longer be duly renewed between them and the authorities of Constantinople because, as from

1899, Crete was governed by special laws and this held good even if these special laws were to be regarded as Turkish laws.

The firm of Collas & Michel alone persisted in maintaining the contrary.

But that is not all: The concessionary contract of April 14th, 1913, renews the general terms of the original contract of 1860. Now this original contract, a bilateral instrument, assumes certain conditions as being accepted by the central Ottoman authority in Constantinople, which it was in 1913 absolutely impossible to fulfil in the island of Crete.

Under Article 5, for example, the land required for the lighthouses had to be supplied free of charge by the Ottoman Government. According to the same text, however, these lands were to be regarded as Ottoman property and the Turkish authorities were to have the right of access to them and the right to take any police measures.

But in 1913 the Government of Constantinople no longer disposed of any land in Crete. How then could it at that time stipulate for the disposal of land in favour of the firm of Collas & Michel? This land at that time belonged to Crete and, under the Constitution of 1899, Cretan territory was inalienable (Art. 2) and no servitude could be established in that territory. Moreover, not even rights to real property on the adjacent islets could be acquired without the sanction of the local authorities (Art. 19, para. 3), a provision which clearly presumes that the competence of the Cretan authorities—and that competence alone—extended also to these islets and to the territorial waters of the island.

Similarly, according to Article 6 of the concessionary contract, materials for the erection or repair of lighthouses were to be duty free. But, since 1899, customs matters in Crete had no longer depended upon the central authorities at Constantinople. Even Ottoman goods paid customs duty on entering Crete, and this state of affairs had been accepted by Turkey herself (see English Blue Book, Nos. 106-107).

In short, the whole agreement concerning the lighthouses concession presupposed obligations on the part of the Ottoman Government—as well as a right of supervision—which this central authority was not only quite unable to exercise in fact and in law, but which it, also, could not require the Cretan Government to exercise or fulfil in its stead in virtue of conventions subsequent to the Cretan Constitution.

That simply amounts to saying that the concession of 1913 granted by Turkey to the firm of Collas & Michel could not

in any way concern Crete, any more than it could concern Cyprus, Egypt or Tunis, just as the concession of 1860 could not concern Roumania, all these territories been governed by special laws, even supposing that those laws were comprised within the general régime of Turkish legislation.

Thus, if Collas & Michel had desired to take the proper legal steps to renew their concession for the lighthouses of Crete also, it was with the Cretan Government—or the Greek Government, according to the date—that they would have had to negotiate; and surely in such a case the Porte could not have raised any objection to their doing so.

VII.

The Island of Samos.

The international situation of the island of Samos, from the point of view with which we are concerned—that is, in particular, in regard to the question whether the Imperial Ottoman Government of Constantinople possessed, in 1913, the necessary juridical competence duly to enter into a contract for the concession of the lighthouse service—though not entirely identical with the situation that has been discussed in connection with the island of Crete, is nevertheless similar to it.

For in the case of the island of Samos, also, we have an organic statute which appears to furnish a complete answer to the problem. This statute is that of December 22nd, 1832, which was renewed in 1852.

In virtue of this régime, the Sublime Porte, acting with the assent of the representatives of France, Great Britain and Russia, and as a result of their intervention, conferred very wide autonomous rights upon the island of Samos, rights which it could not even curtail, for they were the direct consequence of the protection exercised over the island by England, France and Russia and internationally recognized. Thus, for example, the Sultan was not entitled to send even the smallest number of troops into the island; accordingly, when he sent some troops in 1912, the fleets of the protecting Powers intervened, and Samos was relieved of their presence. Immediately afterwards—still in the year 1912—Samos was occupied by Greek troops without any protest being made by its protectors.

In view of these events—which are a matter of history—one would in my opinion be quite justified in inferring that Samos was virtually detached from Turkey before the conclusion of the lighthouse contract of April 1st/14th, 1913.

However, even supposing that that inference were not justified, it is at any rate quite indisputable that the island of

Samos was governed by special organic laws which should alone—even if they were Turkish laws—be taken into consideration by the Court, *in conformity with its judgment of 1934*, in determining whether the concession of 1913 was duly entered into.

It will therefore suffice to analyze the laws which the Sublime Porte granted, as stated above, to the Principality of Samos, in other words, the organic statutes of 1832 and 1852 concerning that island. It is only by such an analysis that it can be shown whether it was the Ottoman Government at Constantinople or the Samian Government which was legally competent to conclude *operative* concessionary contracts concerning the island of Samos with the firm of Collas & Michel, which would be effective from 1924 until 1949.

* * *

In virtue of the organic statutes referred to above, authority in regard to the internal affairs of the island was vested in a Council, whose members were selected from the notables of the country and whose President was the Prince of Samos, appointed by the Porte. It was this Council which conducted the general administration of the island, and it was this Council alone which, according to the organic statute, was invested with the necessary authority for the regular conduct of the different branches of the administration of the island, and was empowered freely to decide upon questions relating to commerce (Art. 2).

Furthermore, it was the Council which had power to direct the external relations of the island, although in regard to the latter point its President—who was appointed by the Porte—possessed a right of veto (Art. 4 *in fine*).

The island was obliged, on the other hand, to pay direct to the Sublime Porte, *as an aggregate and inclusive charge*, an annual impost of 400,000 piastres.

The above-mentioned texts are, in my opinion, the only ones which have a direct bearing on the problem that we are considering. And the legal interpretation of these texts, relating, on the one hand, to the extent of the rights conferred on the Principality of Samos and, on the other hand, to the extent of the rights retained by the Sultan, appears to me to be entirely favourable to the Greek case.

The island of Samos was, in 1913, in the same legal situation as Egypt, as Roumania until the year 1878, and as Bulgaria until the year 1908.

Accordingly, although allegations to the contrary have been made—without however being supported by a single example—all the concessions granted in respect of the island of Samos since that period have been duly entered into, *not by the Sultan, but by the Council of Samos*.

This was the case, in particular, in regard to :

(1) a telephone concession which was granted in virtue of a law of June 27th, 1890, and implemented in regard to certain details on August 14th, 1890 ;

(2) a concession for the construction and operation of a tramway which was granted on September 4th, 1898 ;

(3) a concession for a monopoly of the manufacture of matches which was granted on October 22nd, 1899.

I will refrain from citing a number of other similar concessions concerning sparkling wines, petroleum, coal, sponge fisheries, etc.

Furthermore, concessions granted by the Ottoman Government to companies whose rights extended to the remainder of the Ottoman Empire did not extend to the island of Samos.

This was the case in particular in regard to the Tobacco Monopoly ; thus, the small vessels employed by the Monopoly to prevent tobacco smuggling in Turkey were not even entitled to go to Samos. Regarding that point, I have before me a letter dated August 27th, 1895, written by the Grand Vizier Sait to the Principality of Samos, informing the Government of that island that clear and precise orders had been given to the vessels of the Monopoly not to go near the coasts of Samos, and that the captain of a certain vessel who had disregarded these instructions had been punished and dismissed.

Indeed, if it were admitted that Turkey, contrary to her own legislation—which was also international legislation—, was entitled to extend concessions which she had granted in respect of the rest of the Empire, to the island of Samos, she would have succeeded, in a roundabout way, in making Samos pay, not an AGGREGATE AND INCLUSIVE *impost* of 400,000 *piastres*, but a very much heavier charge.

I am aware that, unfortunately, in the case of the concession to Collas & Michel that Company succeeded, in spite of what has been said above, in persuading the Porte to ignore the laws which it had itself granted to the island, willingly or unwillingly, and that the Company was thus able to establish two lighthouses on the coasts of Samos, one in 1890 and the other in 1912, without any possibility of protest by Samos. For how could a protest have been made ? The concessionary Company possessed the nationality of one of the very countries which had assumed the protection of the rights of Samos in regard to the Porte and towards which the Samians have never ceased to manifest their gratitude.

Moreover, as it has been very truly observed, one could not infer from this circumstance that laws regarding public rights are liable to extinction by prescription, after a period which would in this case have been of somewhat short duration.

* * *

VIII.

It may perhaps be objected to the argument set forth above, in regard both to Crete and to Samos, that though, on the one hand, the Court must in any case express its opinion on the validity or otherwise of the contract of April 1st/14th, 1913, concerning the lighthouses in the two islands, it would be impossible, on the other hand, to deny its validity, seeing that conventions of this kind must be regarded as having been concluded in the interest of international shipping (*Imperial interest*); and that, indeed, there have been at least two examples of international conventions, concluded with that very object, which have definitely stipulated that the administration of the lighthouses should not be under the exclusive competence of the State in which these lighthouses were situated. That was the case with the lighthouse on Cape Spartel and the lighthouses in Ireland, in regard to the latter of which certain rights were reserved to Great Britain by the Treaty of December 6th, 1921.

Naturally, it would not occur to anyone to contradict such an evident truth. Any international convention, whatever its form, may stipulate exceptions even to some of the general principles of international law, and in particular it may establish servitudes. But,

1. Such reservations and servitudes cannot possibly be presumed; they must be clear and distinct; and precisely in the case now before the Court, at any rate as regards the island of Crete, it was expressly stated in Article 2 of the Cretan Constitution, accepted by France, that "the Cretan territory is inalienable" and that "*no servitude can be established in that territory*".

2. Turkey has never been a great maritime country or even a small maritime country. In any case, the Powers which had brought about the liberation of Greece and of Crete and Samos could never—never in any circumstances—have supposed that it would be in the interests of international shipping to entrust the lighting of the coasts of the Eastern Mediterranean to Turkey and to her concessionaires, in regard to the territories which were being freed from the Turkish yoke.

3. In the first place, the question of the lighting of the coasts of a country is so vital to that country—especially in these days of submarines and petroleum—, and in the second place, the international responsibility of the riparian States on this point is so grave that no one could conceive of this lighting

being brought *tacitly* under a concessionary contract, concluded in contravention of the régime of the country's international status.

4. Finally, and to sum up, it was an international interest which primarily required, in 1913, that the responsibility for the lighting of the Cretan and Samian coasts should be imposed, not upon Turkey, which might grant concessions to German, French, Italian, Russian or other companies, but to the governments of the islands in question which were placed, either in law or in fact, under the plurilateral supervision of the Great Powers.

* * *

To conclude, in view of the foregoing observations, I am of opinion that the Court, in giving its answer to the question put to it by the Parties in the present suit, is inevitably confronted with the following dilemma :

either the word "detached" must be interpreted, in the case of the islands of Crete and Samos, in the sense indicated by the French Memorial in its opening passage—a sense that was also accepted by Greece—and in that case the concessionary contract of 1913 could not be regarded as duly entered into or, accordingly, as operative in regard to Greece ;

or, on the other hand, these islands were still at that period territories subject to the sovereignty of Turkey and, as such, governed by Turkish laws ; but in that case the contract of 1913 not having been signed, so far as concerns Turkey, by persons who were competent and under her own legislation, was not duly signed and must accordingly be regarded as not being operative in regard to Greece.

Therefore, whichever of the two alternative propositions set forth above is adopted, I consider that it is not possible to regard the concessionary contract of 1913 as having been duly signed in respect of the islands of Crete and Samos.

My conclusions may therefore be definitely summed up as follows :

The concessionary contract of April 1st/14th, 1913, signed between the firm of Collas & Michel and the Government of Constantinople, not having been duly entered into in respect of the islands of Crete and of Samos, Greece cannot be considered as subrogated as regards the rights and obligations of Turkey towards the French Company referred to above.

(Signed) S. P. SÉFÉRIADÈS.